Tentative Rulings for July 22, 2026
Department 6

To request oral argument, you must notify Judicial Secretary Crystal Marias at (760) 904-5722 and inform all other counsel no later than 4:30 p.m.

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at Riverside Superior Court-Tentative Rulings.. If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 6 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at Riverside Superior Court-Remote Appearances

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252, 1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: 161 830 3643

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2404824	RIVERA vs FORD MOTOR COMPANY	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

Moving party: Plaintiff Wendy Rivera
Responding party: Defendant Ford Motor Company

This is a lemon law case. On September 23, 2022, Wendy Rivera aka Wendy Noemi Rivera-Ventura (“Plaintiff”) purchased a 2022 Ford Explorer (“Subject Vehicle”) which was manufactured and/or distributed by Defendant Ford Motor Company (“Defendant” or “Ford”). In connection with the purchase, Plaintiff received a Basic Warranty that included bumper-to-bumper coverage for defects in materials and workmanship for the earlier of 36 Months (3 Years) or 36000 miles, a Drivetrain/Powertrain Warranty that covered defects in materials and workmanship for the earlier of 60 Months (5 Years) or 60000, and an California Emissions Warranty that covered defects in materials and workmanship in emissions parts for the earlier of 7 years or 70,000 miles. The Subject Vehicle developed nonconformities during the warranty period. Despite sufficient repair attempts, Ford was unable to cure the defects. Ford failed to repurchase the Subject Vehicle in violation of the Song Beverly Consumer Warranties Act (“Song Beverly Act”).

On August 28, 2024, Plaintiff filed the Complaint against Ford and Warren Anderson Ford. The Complaint asserts two causes of action for: (1) Violations of the Song Beverly Act--Breach of Express Warranty against GM; and (2) Negligent Repair.

Plaintiff now moves for attorney’s fees in the amount of $24,765.00 and costs in the amount of $3,761.52 under the fee-shifting provision of the Song Beverly Act. Plaintiff argues that the hours were reasonable, and all duplicative hours have been removed from billing records. Plaintiff argues that staffing with several attorneys was reasonable because each attorney specializes in unique aspects of litigation. Plaintiff invites defense counsel to produce records for comparison. Plaintiff argues that the rates are reasonable based on the nature and complexity of the case and skill of counsel. Plaintiff requests a 1.5 multiplier based on contingency risk. Plaintiff argues that the costs are reasonable.

Defendant argues that the rates requested are excessive for Riverside County and should be reduced to $275 for non-partners and $350 for partners based on the Real Rate Report. Defendant argues that all hours incurred by Castillo Law must be stricken because the attorneys were not licensed in California. Defendant argues that Plaintiff should not recover fees in connection with the discovery motions because the Court already addressed the issue of sanctions. Defendant argues that the fees for the PMQ deposition should be stricken since Plaintiff knew in advance that the PMQ was not available. Defendant argues that the fees for the present Motion are excessive. Defendant argues that Plaintiff should not recover for internal communications or administrative work. Defendant argues that the case was overstaffed. Defendant argues that the enhancement is not warranted. Defendant argues that the costs are excessive and unsubstantiated.

In her Reply, Plaintiff withdraws the request for fees for Grenville Pridham. Plaintiff argues that it provided sufficient evidence to support the rates requested, and Defendant has not produced sufficient evidence that the rates are excessive. Plaintiff argues that the number of attorneys was reasonable. Plaintiff argues that the unlicensed attorney was billed as a law clerk. Plaintiff argues that each of Defendant's challenges to specific tasks lack merit. Plaintiff argues that the costs are reasonable under the Song Beverly Act, and she was not required to provide invoices with the Memorandum.

Motion for Attorneys' Fees:

Attorneys' fees may be awarded to a prevailing party as costs when authorized by contract, statute or law. (CCP § 1033.5(a)(10).) The Song Beverly Act provides, "[i]f the buyer prevails in an action under [the Song-Beverly Act], the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees, based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civil Code §1794(d).) Here, on December 30, 2025, Ford served Plaintiff an Offer to Compromise pursuant to the California Code of Civil Procedure § 998 for the sum of $100,000.00, which Plaintiff accepted the same day. (Decl. of Pisciotta, ¶ 2, Ex. A.) As such, Plaintiff is the prevailing party, and is entitled to reasonably incurred fees and costs.

Lodestar:

The lodestar method is used to calculate fees under section 1794(d). (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal. App. 4th 967, 997.) The lodestar amount is based on the time spent and reasonable hourly rate. (Id at 998.) The prevailing buyer has the burden of showing the fees incurred were allowable and reasonably necessary to the conduct of the litigation. (*Goglin, supra*, 4 Cal. App. 5th at 470.) Verified billing records constitute prima facie evidence that the fees were reasonable. (*Hadley v. Krepel* (1985) 167 Cal. App. 3d 677, 682.) Once the prevailing party has made a prima facie showing that its fee request was fair and reasonable, the burden of proof is on the opposing party to show by admissible evidence that the fees requested were unreasonable, either by the number of hours or the hourly rate or both. (*Maughan v. Google Technology* (2006) 143 Cal. App. 4th 1242, 1261.) The trial court must make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case, including the complexity of the case, procedural demands, skill exhibited, and results achieved, the amount of actual time expended and the monetary charge being made for the time expended are reasonable. (*Goglin v. BMW of North America* (2016) 4 Cal. App. 5th 463, 470.) If the time expended or monetary charge is not reasonable, the court should reduce the amount. (*Ibid.*)

Plaintiffs claim a lodestar total of $17,920.00 based on 37.6 hours.

Billing Rates:

The reasonable hourly rate is that prevailing in the community for similar work. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) The experienced trial judge is the best judge of the value of professional services rendered in his or her court and may make his or her own determination of the value of the services contrary to, or without the necessity for, expert testimony. (*Id.* at 1096.) In determining the value of the legal service, courts consider several factors, including, "the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case." (*PLCM Group, Inc., supra,* 22 Cal. 4th at 1096.)

Plaintiff requests hourly rates ranging from $395 for a law clerk to $600. Some of these rates appear somewhat high for Riverside County. However, Defendant's reduced rates of $275 for non-partners and $350 for partners are also significantly lower than rates typically awarded for lemon law actions. Thus, the reasonable rates are adjusted as follows, reflecting the experience and skill of counsel and contingency risk:

Name	Year licensed	Billed rate	Reduced rate	No. of hours	Total fee reduction
Kirnos	2009	$550	$550	NA	
Lopez	2018	$450	$425	4.6	$1,995
Lopez	2018	$400	$400	.4	$160
Cohen	2017	$515	$425	4.8	$2,040
Meagle	2019	$400	$400	6.6	$2,640
Reed	2009	$495	$495	2	$990
Cutler	2009	$550	$525	2.2	$1,155
Pridham	1985	$600	NA	NA	
Higgins	2003	$600	$575	6	$3,450
Donnelly	1995	$500	$500	4.8	$2,400
Robles	Law Clerk	$295	$200	4.4	$880
Total				35.8	$15,710

Hours Incurred:

Plaintiff claims that counsel billed 37.6 hours on this case. Counsel produced extensive billing records showing the time for each tasks. Generally, billing records are given a presumption of credibility. (*Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 396.) "In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice. Failure to raise specific challenges in the trial court forfeits the claim on appeal." (*Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.* (2008) 163 Cal.App.4th 550, 564.)

Defendant argues that the fee is excessive because the case was overstaffed. "[I]t is appropriate for a trial court to reduce a fee award based on its reasonable determination that a routine, noncomplex case was overstaffed to a degree that significant inefficiencies and inflated fees resulted." (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 39.) To remedy this excessive billing, the court may cut certain attorneys from the lodestar analysis entirely. (Id at 40.) The court must determine whether the staffing choices resulted in excessive or duplicative billing regardless of the number of attorneys. (*Mo. Rahman v. FCA Us LLC* (C.D. Cal., 2022) 594 F. Supp. 3d 1199, 1205-1206.) In this case, although ten attorneys worked on the case, there does not appear to be any significant or obvious stacking or duplicative work. Moreover, Plaintiff withdraws 1.8 hours ($1,080) incurred by Attorney Pridham.

Defendant argues that fees requested in connection with Plaintiff's discovery motions should be stricken because the Court already awarded fees for the Motion to Compel Further Responses to Requests for Production and denied fees in connection with the Motion to Compel Further Responses to Special Interrogatories. Awarding additional fees for the discovery motions would undermine the Court's prior determination as to the reasonable amount of sanctions and justification for the motions. Based on the adjusted rates above, the **lodestar is reduced by $3,365.**

Defendant argues that fees incurred in taking the PMQ deposition should be stricken because Plaintiff was informed in advance that the PMQ was unavailable. However, the non-appearance fees are reasonable.

Defendant argues that the 4.90 hours for the present fee motion, including 3 hours for anticipated events (i.e. reviewing opposition and drafting reply) are excessive. The Opposition includes several specific challenges that require response. Moreover, because Defendant demanded additional evidence regarding the costs and expenses, new evidence was submitted with the Reply which requires a continuance as explained below. Therefore, the future hours are reasonable.

Based on the above, **the lodestar total is reduced to $12,345.00.**

<u>Multiplier</u>:

Plaintiff requests 1.5 multiplier. The court has the power and the duty to enhance, or to reduce, the lodestar through the use of multipliers, by taking into consideration factors such as the novelty and complexity of the issues, the skill and expertise of counsel, the extent that the litigation precluded other employment and the contingent nature (or risk) of nonrecovery." (*Robbins v. Alibrandi* (2005) 127 Cal.App.4th 438, 448.) A contingent fee is generally higher than a fee for the same legal services paid as they are performed to compensate for the loan of those services and risk of loss. (*Ketchum v. Moses* (2001) 24 Cal. 4th 1122, 1132.) "However, although taking a case on a contingent fee basis may support an award of a multiplier, it does not compel, it." (*Save Our Uniquely Rural Community Environment v. County of San Bernardino* (2015) 235 Cal. App. 4th 1179, 1188.)

The request for the multiplier is based on the contingency risk and complexity of the case and skill of counsel. However, the contingency risk was reduced due to the fee-shifting provision of the Song Beverly Act. Moreover, the contingency risk, as well as the skill and experience of counsel, was accounted for in the billing rates. Thus, adding an enhancement based on the same factors constitutes double counting. (*Ketchum v. Moses* (2000) 24 Cal. 4th 1122, 1142.) **The request for multiplier is denied.**

Litigation Costs and Expenses:

"Except as otherwise provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (CCP § 1032(b).) Generally, CCP § 1033.5 enumerates categories of costs that are allowable and items that are not allowable. The Song Beverly Act allows a prevailing buyer to recover costs and expenses which are reasonably incurred in connection with the commencement and prosecution of the action. (Civil Code §1794(d).) The additional term "expenses" was included in this section to cover items that would not otherwise be included in the detailed statutory definition of "costs" under CCP § 1033.5. (*Jensen v. BMW of North America* (1995) 35 Cal.App.4th 112, 137-138.)

"If the items on a verified cost bill appear proper charges, they are prima facie evidence that the costs, expenses and services therein listed were necessarily incurred. Where the items are properly objected to, they are put in issue, and the burden of proof is upon the party claiming them as costs." (*Levy v. Toyota Motor Sales, U.S.A., Inc.* (1992) 4 Cal.App.4th 807, 816.) The prevailing buyer bears the burden of showing that costs or expenses were (1) reasonably necessary to the conduct of litigation and (2) reasonable in amount. (*Ibid*.)

On April 21, 2026, Plaintiff filed the Memorandum of Costs seeking a total of $3,761.52 in costs. Defendant argues that the costs are excessive and unsubstantiated but does not object to any specific items. Nor has Defendant filed a motion to tax costs. Defendant argues that it cannot determine which costs are reasonable without substantiating evidence. While Plaintiff was not required to provide such evidence until the specific items are challenged, Plaintiff produced additional records in support of the Reply. The court may consider new facts or evidence in reply papers as long as the other party has the opportunity to respond. (*Alliant Ins. Services, Inc. v. Gaddy* (2008) 159 Cal. App. 4th 1292, 1307-1308.)

As the Court will consider the Reply evidence. The hearing will be continued to allow Defendant to respond. **Hearing continued to 8/28/2026 at 8:30 a.m.** Any supplemental opposition by the Defendant must be filed and served no later than

8/21/2026. The OSC re: Dismissal After Conditional Settlement Pursuant to CRC 3.1385(c) calendared for 8/6/2026 is continued to 8/28/2026 as well.

The parties may resolve the issue of cost by way of stipulation, in which case the parties are to request to take the hearing off calendar and file a dismissal or Judgment.

2.

CASE #	**CASE NAME**	**HEARING NAME**
CVRI2600149	DIPADOVA vs CHEUNG	DEMURRER ON 1ST AMENDED COMPLAINT
CVRI2600149	DIPADOVA vs CHEUNG	MOTION TO STRIKE 1ST AMENDED COMPLAINT

Tentative Ruling:

Moving party: Defendants Newport Care Medical Group, Inc., dba Newport Orthopaedic & Spine Center A Medical Corporation e/s/a and served as Newport Care Medical Group and Sunny Cheung, M.D.
Responding party: Plaintiffs Lisa Dipadova and Anthony Vincent Dipadova, in pro per

This is a medical malpractice litigation initiated on by husband and wife Plaintiffs Lisa Dipadova and Anthony Vincent Dipadova against Sunny C. Cheung, M.D. (“Dr. Cheung”), Newport Care Medical Group, Inc. (“Newport”), and De Anza Surgery Center (“De Anza”). Lisa Dipadova (or “Plaintiff”) sought orthopedic care for hip pain, for which Dr. Cheung recommended femoroacetabular impingement (“FAI”) surgery with labral repair. Dr. Cheung performed this surgery on Plaintiff. After the surgery, Dr. Cheung stated he had only performed one to two similar procedures per year despite the widely recognized risks associated with inexperienced surgeons performing FAI surgeries. The FAC alleges Dr. Cheung did not disclose this critical information to Plaintiff prior to surgery. Plaintiff relied on the representations and omissions of Defendants and consented to the procedure. Following surgery that had technical difficulties, Plaintiff developed permanent femoral nerve damage, severe weakness, loss of function, chronic pain, and permanent disability. Moreover, the primary condition for which the surgery was performed was not successfully repaired. On July 25, 2025, Dr. Cheung drafted a letter acknowledging the permanent nerve injury was not diagnosed until later and was a result of his action.

The operative FAC, filed April 1, 2026, asserts causes of action for (1) Medical Negligence, (2) Fraud by Concealment, (3) Corporate Negligence, and (4) Loss of Consortium.

Newport and Dr. Cheung (“Defendants”) now demur to the FAC, arguing (1) the **second cause of action** for failure to state facts sufficient and fails to allege materiality of the non-disclosure; and (2) the **third cause of action** is duplicative of the first cause of action and failure to state facts sufficient.

In opposition, Plaintiffs maintain the FAC is sufficiently plead to assert causes of action for fraud and corporate negligence. Plaintiffs argue Defendants' materiality argument is improper for purposes of demurrer.

In reply, Defendants generally repeat the arguments advance in their moving papers.

<u>**Analysis**</u>

I. Meet & Confer

Before filing a demurrer, the moving party **shall** meet and confer, **at least 5 days before a responsive pleading is** due, in person, by telephone, or video conference, with the party who filed the pleading for purposes of seeing if a resolution can be had to the objections raised in the demurrer motion. (Code Civ. Proc., §§410.41, subd. (a), 435, subds. (a)(1)-(2).) The demurring party must file a declaration stating the means by which the parties met and conferred, or the responding party failed to respond or meet and confer in good faith. (Code Civ. Proc., §430.41, subd. (a)(3).) Plaintiff never replied to Defendant's voicemail and subsequent meet and confer letter mailed. (Lam Decl., ¶2.) The parties did not conduct a Code-compliant meet and confer as the parties only emailed. (Dildy Decl., ¶¶6-9.) Nevertheless, the Court will reach the merits.

II. Standard

Demurrers for failure to state a cause of action are commonly referred to as "general" demurrers. (*McKenney v. Purepac Pharmaceutical Co.* (2008) 167 Cal.App.4th 72, 77.) All other grounds for demurrers are referred to as "special demurrers." (*Collins v. Rocha* (1972) 7 Cal.3d 232, 239.)

A demurrer may be based on the grounds that a complaint fails to state a cause of action and/or misjoinder of parties. (Code Civ. Proc., §§ 430.10(d), (e).) A complaint fails to state a cause of action if it shows on its face, or it appears from judicially noticed matter, that the action is barred by an affirmative defense or if it fails to state facts essential to establish each element of each cause of action. (*Halvorsen v. Aramark Unif. Servs.* (1998) 65 Cal.App.4th 1383, 1391; *Rakestraw v. Cal. Physicians' Servs.* (2000) 81 Cal.App.4th 39, 43; *Ankeny v. Lockheed Missiles & Space Co.* (1979) 88 Cal.App.3d 531, 537.) In evaluating a demurrer, the court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions, or conclusions of fact or law. (*Dear v. Yellow Cab Co.* (1967) 67 Cal.2d 695. Further, the complaint allegations must be supported by "ultimate facts," not legal conclusions. (*Burke v. Sup. Ct.* (1969) 71 Cal.2d 276.)

III. Merits – General Demurrer

a. 2nd Cause of Action – Fraudulent Concealment

"[T]he elements of a cause of action for fraud based on concealment are: "(1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage." (*Kaldenbach v. Mutual of Omaha Life Ins. Co.* (2009) 178 Cal.App.4th 830, 850 [internal citations omitted].)

"There are 'four circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts.'" (*LiMandri v. Judkins* (1997) 52 Cal.App.4th 326, 336.) "Where, as here, a fiduciary relationship does not exist between the parties, only the latter three circumstances may apply." These three circumstances, however, 'presuppose[] the existence of some other relationship between the plaintiff and defendant in which a duty to disclose can arise.' [Citation.] 'A duty to disclose facts arises only when the parties are in a relationship that gives rise to the duty, such as ''seller and buyer, employer and prospective employee, **doctor and patient**, or parties entering into any kind of contractual arrangement."' '[Citation] (*Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276, 311, emphasis added.)

"Generally, fraud actions are subject to strict requirements of particularity in pleading." (*Furia v. Helm* (2003) 111 Cal.App.4th 945, 956.) This means that every element of the cause of action must be pled factually and specifically, and the policy of liberal pleading does not apply. (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 47.) This particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered." (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.) However, the specificity requirements of fraud are "relaxed when it is apparent from the allegations that the defendant necessarily possesses knowledge of the facts." (*Quelimane, supra,* 19 Cal.4th at 27.)

Defendants argue the FAC fails to plead fraud with specificity and fails to plead facts sufficient to establish an affirmative duty on the part of Dr. Cheung for fraudulent concealment. Defendants explain that the non-disclosures by Dr. Cheung, that he had only performed one to two hip FAI surgeries and that surgeons at the early stage of learning curve of hip arthroscopy face higher rates of complications, were not material for Plaintiff to make a decision regarding the surgery. Defendants cite to *Arato v. Avedon* (1993) 5 Cal.4th 1172, 1186 to advance this argument where the Court held ["a physician is under a legal duty to disclose to the patient all material information – that is ‘information which the physician knows or should know would be regarded as significant by a reasonable person in the patient’s position when deciding to accept or reject a recommended medical procedure’ - needed to make an informed decision regarding a proposed treatment”].)

Plaintiffs point out in opposition that instead of addressing the legal sufficiency of the FAC, Defendants reject Plaintiffs’ factual allegations, determine the materiality of allegedly concealed information, resolve questions concerning Defendants’ duties, and draw factual inferences in Defendants’ favor. Plaintiff contends this is improper on a demurrer.

Plaintiff is correct. The limited role of a demurrer is to test the legal sufficiency of a complaint. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) A demurrer raises issues of law, not fact, regarding the form or content of the opposing party’s pleading. (*Id.*) Defendants’ materiality arguments take on a fact specific finding that is not proper on demurrer whereas the purpose of a demurrer is not to resolve the action on its merits.

Here, the FAC meets the heightened pleading requirement for fraud as it answers how, when, where, who, and what. The FAC alleges Dr. Cheung “recommended that Plaintiff undergo [FAI], a technically demanding orthopedic procedure; that at the time of recommendation, Dr. Cheung had performed only one to two similar procedures; Dr. Cheung failed to disclose this critical lack of experience to Plaintiff before recommending and performing the surgery; Plaintiff reasonably relied upon Dr. Cheung’s recommendation, believing he possessed the training, experience, and competency necessary to safely perform the surgery; and during the FAI, technical complications occurred which ultimately resulted in permanent femoral nerve injury to Plaintiff. (FAC ¶¶10-15.) These allegations, taken as true for purposes of demurrer, are sufficient to state a cause of action for fraudulent concealment. The Court **OVERRULES** the demurrer.

b. 3rd Cause of Action - Corporate Negligence against Newport and De Anza

Defendants argue the corporate negligence claim fails to state facts sufficient because there are no facts pled that Newport was Dr. Cheung’s employer, and the mere granting of surgical privileges does not show the requisite employer-employee relationship.

In opposition, Plaintiff points out she is not seeking to impose liability upon Newport solely under a theory of respondeat superior. Rather, the FAC alleges that Newport independently breached duties owed directly to Plaintiff by failing to exercise reasonable care in the credentialing, oversight, supervision, and management of physicians performing specialized surgical procedures.

Defendants do not address this argument in reply. The failure to respond to a point is “equivalent to a concession.” (*Sehulster Tunnels/Pre-Con v. Traylor Brothers, Inc.* (2003) 111 Cal.App.4th 1328, 1345, fn. 16.)

Here, the FAC indeed alleges Newport owed Plaintiff independent duties that include properly credentialing physicians, verifying training, and surgical experience, ensuring competency before granting privileges, and protecting patients from unsafe or unqualified practitioners. (FAC ¶¶117-120.) Thus, based on these allegations, Defendants' argument is rejected.

In *Elam v. College Park Hospital* (1982) 132 Cal.App.3d 332, 340, the Court of Appeal held a hospital may be liable under the doctrine of "corporate negligence" for the malpractice of independent physicians and surgeons who were members of hospital staff, and availed themselves of the hospital facilities, but were not agents or employees of the hospital. (*Id.* at 347-348.) Specifically, the court found that a failure to adequately supervise the competence of staff physicians is held to create an unreasonable risk of harm to the patients, and any patient injury caused by staff incompetence is therefore directly actionable against the hospital. (*Id.* at 340-342.) Thus, *Elam* provides a theory under which a hospital or health facility can be found liable for the medical malpractice of its staff.

In any medical malpractice action, the plaintiff must establish: (1) the duty of the professional to use such skill, prudence, and diligence as other members of his profession commonly possess and exercise; (2) a breach of that duty; (3) a proximate causal connection between the negligent conduct and the resulting injury; and (4) actual loss or damage resulting from the professional's negligence. (*Hanson v. Grode* (1999) 76 Cal.App.4th 601, 606.)

Here, the FAC further alleges Defendants breached the aforementioned duties by negligently granting surgical privileges for complex hip arthroscopy to a surgeon with extremely limited experience; failed to require minimum case volume thresholds for performing FAI surgery; failing to require supervision or proctoring for a surgeon with minimal procedural experience; failure to monitor surgical outcomes or competency before allowing independent performance of the procedure; and failure to implement adequate credentialing safeguards designed to protect patients undergoing complex orthopedic procedures. (FAC ¶128.) This breach caused Plaintiff harm. (*Id.* ¶¶131-134.) **Plaintiff sufficiently pleads a claim for corporate negligence.**

c. Duplicative Claims

Defendants contend the corporate negligence claim is duplicative of the first cause of action for professional negligence and violates the primary rights doctrine that allows a plaintiff to bring only one cause of action to vindicate a primary right.

Plaintiff asserts the two claims are not duplicative because the professional negligence claim is directly based on Dr. Cheung's conduct whereas the corporate negligence cause of action is directed at Newport's independent conduct.

As discussed earlier, in the FAC the corporate negligence claim is a direct claim against Newport. However, the first cause of action is asserted against all defendants, including Newport.

The elements for a claim of professional negligence are the same as corporate negligence/professional malpractice.

The elements of a cause of action for negligence are: (1) Defendant's legal duty of care toward plaintiff; (2) Defendant's breach of duty (the negligent act or omission); (3) injury to plaintiff as a result of the breach (proximate or legal cause); and (4) damage to plaintiff. (See *George A. Hormel & Co. v. Maez* (1979) 92 Cal.App.3d 963, 966; see also 4 *Witkin Cal. Proc. Plead* §537; *Huggins v. Longs Drug Stores California, Inc.* (1993) 6 Cal.4th 124, 129.)

Courts have long held that a duplicative cause of action is also a basis for sustaining a demurrer. (See *Palm Springs Villas II Homeowners Assn., Inc. v. Parth* (2016) 248 Cal.App.4th 268 [duplicative cause of action for breach of fiduciary duty subject to dismissal by way of demurrer]; *Award Metals, Inc. v. Superior Court* (1991) Cal.App.3d 1128, 1135 [demurrer properly sustained to duplicative negligence cause of action].) However, although other courts have disagreed regarding a "duplicative" challenge, the Court should not sustain the demurrer at the pleading stage on that basis. (See *Palm Springs Villas II Homeowners Assn., supra,* 248 Cal.App.4th at 290.) This is especially true since the *Blickman Turkus Court* explained: "This is the sort of defect that, if it justifies any judicial intervention at all, is ordinarily dealt with most economically at trial, or on a dispositive motion such as summary judgment." (*Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 890.)

The Court OVERRULES the general demurrer.

The Defendants are ordered to file an Answer within 10 days of this order. (Cal. Rules of Court, rule 3.1320 (j).)